

Collective Agreement

between

**Ontario Public Service Employees Union
on behalf of its Local 279**

and

**The Corporation of Norfolk County
Full-time & Part-time Paramedics**

DURATION: April 1, 2016 – March 31, 2020



**Sector 1
2-279-10104-20200331-1**

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PREAMBLE

WHEREAS it is the desire of both Parties to this Agreement:

- (1) To maintain and improve harmonious relations and settled conditions of employment between the Employer and the Union;
- (2) To recognize the mutual value of joint discussions and negotiations in all matters pertaining to working conditions;
- (3) To encourage efficiency in operation and the highest possible standards of service to the public;
- (4) To promote the morale, well being and security of all paramedics in the bargaining unit.

WHEREAS it is now desirable that methods of bargaining and all matters pertaining to the working conditions of the paramedics be drawn up in a Collective Agreement.

FOR THE PURPOSE OF THIS AGREEMENT, "representative" shall mean Staff Representative, Unit Steward, Shop Steward or Union members of Committees referred to herein.

FOR THE PURPOSE OF THIS AGREEMENT, "full-time paramedic" shall mean a paramedic who is regularly scheduled to work between twenty-five (25) and forty (40) or forty-two (42) hours per week.

FOR THE PURPOSE OF THIS AGREEMENT, "part-time paramedic" shall mean a paramedic who is regularly scheduled to work twenty-four (24) hours per week or less.

FOR THE PURPOSE OF THIS AGREEMENT, a "day" shall be defined as an eight (8), ten (10), or twelve (12) hour shift as applicable.

FOR THE PURPOSE OF THIS AGREEMENT, "orientation" shall be defined as a minimum of three (3) shift introduction to acquaint and familiarize the paramedic to the job.

WHEREVER the singular or masculine is used in this Agreement, the same shall be deemed to include the plural or feminine.

NOW THEREFORE, the parties agree as follows:

ARTICLE 1 – RECOGNITION

1.01

The Employer recognizes the Ontario Public Service Employees Union (The Union) as the sole and exclusive bargaining agent for all paramedics of Norfolk County, save and except, **Commanders** and persons above the rank of **Commanders**.

ARTICLE 2 – CHECKOFF OF UNION DUES

2.01

The Employer shall deduct from the regular pay of each paramedic in the bargaining unit, starting with the pay period nearest to the paramedics date of hire, an amount equivalent to such union dues as may be designated by the Union from time to time. The Employer agrees to remit this amount to the Accounting Department, 100 Lesmill Road, North York, Ontario, not later than the fifteenth (15th) day of each month following deduction, accompanied by a list of names, and with the first dues deduction, the S.I.N. numbers of the paramedics from whose pay the dues have been deducted.

The Employer agrees that, should negotiations result in retroactive payment of salary increases, the Employer will deduct the amount of dues required by the Article at the time the payment is made.

2.02

The Employer agrees to include on the T4 slips of each paramedic affected by this Article the annual total of dues deducted.

2.03

The Union will advise the Employer in writing of the amount of its regular dues. The amount so advised will continue to be deducted until changed by further written notice to the Employer.

2.04

The Union will indemnify and save the Employer harmless against any and all claims, demands, suits and other forms of liability that may arise out of any action taken or not taken by the Employer for the purposes of complying with any of the provisions of this Article.

ARTICLE 3 – RELATIONSHIP

3.01

The Employer agrees that all paramedics shall, as a condition of employment, become a member of the Union.

3.02

The Employer and the Union agree that there will be no intimidation, discrimination, interference, restraint, or coercion exercised or practiced by either of them or by any of their representatives or members. Particularly, there shall be no discrimination against paramedic(s) with respect to terms and conditions of employment on the grounds of race, creed, colour, age, sex (gender), including pregnancy, sexual orientation, marital status, family status, religion, nationality, ancestry, place of origin, or handicap (disability), union membership or union activity.

3.03

The Parties shall act at all times in accordance with the provision of the Ontario Human Rights Code.

3.04

Where application of the agreement discriminates against a paramedic or group of paramedics on the grounds listed in 3.02 above, the Parties will negotiate accommodation measures to eliminate discrimination, provided that the accommodation does not cause undue hardship on one (1) party as defined in the Ontario Human Rights Code.

3.05

The Employer and the Union recognize the harm caused by bullying, intimidation and personal harassment in the workplace. Bullying can take many forms, such as physical, emotional and psychological. The Employer and Union recognize that bullying is a form of harassment and in order to maintain a safe working environment, as required under the Occupational Health and Safety Act; both parties recognize that it is their combined duty to prevent and respond to bullying.

3.06

It is agreed that the Union and the paramedic(s) will not hold meetings at any time on the premises of the Employer without the permission of the Employer.

3.07

The Employer will provide a bulletin board at each station lounge for use by the Union for the purpose of posting union notices, publications and correspondence.

3.08

The Employer agrees that new paramedics in the bargaining unit will be advised as to the name of the Unit Steward. A representative of the Union shall be given the opportunity, upon request to the immediate non-union **Commander** for permission, which permission shall not be unreasonably withheld, to interview each new paramedic at such station, within regular working hours, without loss of pay to the representative, or to the new paramedic(s), for a maximum of thirty (30) minutes during the first thirty (30) days of employment, for the purpose of acquainting the new paramedic(s) with the benefits and duties of the Union membership, and his responsibilities and obligations to the Union. Such interview must not interfere with the normal schedule of operations or response time.

3.09

The Employer agrees to maintain a personnel record file for each paramedic. Upon written request a paramedic shall have reasonable access to his personnel file for the purpose of reviewing the information contained therein. A paramedic shall have the right to copies of any item in his file.

3.10

Any disciplinary action, including reprimands, written notification of a verbal warning, letters of warning and suspensions shall be removed from the paramedic(s)' file eighteen (18) months from the date on which the discipline occurred unless the paramedic(s) is further disciplined within this time period, in which case all current records of prior actions shall be held in the file for a further eighteen (18) months from the date of the last occurrence. A copy of any correspondence related to any form of discipline is to be forwarded to the Local President or Unit Steward.

ARTICLE 4 – JOB POSTINGS

4.01

Any permanent bargaining unit vacancy which the Employer intends to fill, new position, or temporary position of three (3) months duration or longer shall be filled as follows:

- (a) The Employer shall post a notice of such vacancy or new position on the bulletin boards provided in the work place for a period of not less than seven (7) calendar days.
- (b) If possible, positions shall be advertised within one (1) week of such vacancy or availability.
- (c) During the posting period, qualified paramedic(s) may make written application to the General Manager of **Employee and Corporate Services**.

4.02

When a non-bargaining unit vacancy occurs, such vacancy will be posted on a courtesy basis and the Employer shall post a notice of such vacancy or new position on the bulletin boards provided in the workplace in the same manner as Article 4.01.

4.03

With the Union's permission, the process of having concurrent job postings and outside advertisement of bargaining unit positions is acceptable, provided bargaining unit members are considered prior to other applicants.

4.04

Bargaining unit positions shall be filled in accordance with the following factors:

- (a) The knowledge, skill, and ability to perform the work in question;
- (b) The seniority of the paramedic involved;
- (c) When the factors in (a) are relatively equal between two (2) or more paramedics, factor (b) shall govern.

4.05 (a) A paramedic who makes successful application:

- (i) for any posted bargaining unit position shall be given a trial period of four hundred and fifty (450) hours worked;
- (ii) for any non-union position shall be on probation for the period of time outlined in the Norfolk County non-union policy manual, during which period the paramedic shall continue to pay Union dues at the regular rate.
- (b) Conditional on satisfactory service, the paramedic shall be confirmed in the position at the end of this period.
- (c) In the event that during such trial or probationary period a successful applicant proves to be unsatisfactory in the position, or if the paramedic is unsatisfied in the new position, such paramedic shall be returned to their former bargaining unit position without loss of seniority and shall be paid at the rate of the job to which such paramedic is returned.
- (d) Any other paramedic(s) who had changed positions as a result of the original transfer shall be returned to his or her former position, without loss of seniority, at the rate of the job to which the paramedic(s) is returned.

4.06 Paramedic Platoon Positions

Permanent full-time paramedic(s) shall be normally assigned to a platoon **position** for the purposes of working their scheduled shifts, subject to the other provisions of this Article.

- (a) All permanent full-time paramedic(s) shall be considered assigned to the platoon **position** at which they currently work as their normal platoon **position** of operations.
- (b) Any full-time paramedic(s) subsequently granted a platoon **position** transfer shall be assigned to available base/platoon vacancies on the basis of the most senior qualified paramedic(s).
- (c) Any identified platoon vacancy that the Employer intends to fill and that are normally filled by full-time paramedic(s) may be filled first through a platoon **position** transfer request. Permanent full-time paramedic(s) are eligible to make platoon **position** transfer requests.
- (d) Temporary platoon **position** vacancies that the Employer intends to fill and that are normally filled by full-time paramedic(s) may be filled first through a platoon **position** transfer request by a full-time paramedic. One such request will be granted for the initial vacancy only, by seniority, and upon its completion/termination, Article 4.05(d) shall apply.
- (e) **All platoon position transfer requests will be made via email to the appropriate Commander when vacancies occur. An email to EMS staff will be sent with any vacancies and an end date for transfer requests to be received by management. The end date shall be no fewer than seven (7) calendar days from the time of posting. Any full time paramedic may request to keep a blanket platoon position transfer request on file for a calendar year ending December 31st.**
- (f) **All platoon position transfer requests will be considered by seniority of the full-time paramedic(s) involved. The Employer is not obligated to consider granting more than one (1) platoon position transfer request within any twenty-four (24) month period for any paramedic(s) for any vacancy.**
- (g) Notwithstanding 4.06 (e) and (f) the Employer may simultaneously post to fill any permanent full-time vacancy in accordance with the provisions in Article 4 - Job Postings.
- (h) Notwithstanding 4.06 (a) and (b) any paramedic(s) may be assigned to a different work location for a stipulated period of time in accordance with the needs of the service or of the paramedic(s), and furthermore, the Employer reserves the right to periodically reassess and amend any or all platoon **positions and work locations** in accordance with the needs of the service or of the paramedic(s).

4.07

The employer agrees to provide the Local Union President notice of all new bargaining unit position hires following the signing of an offer letter between the new employee and the County.

The employer agrees to provide the Local Union President notice of all bargaining unit member changes in status, transfers and resignations.

4.08

Bargaining unit members shall accumulate seniority up to six (6) months while occupying a position outside the bargaining unit. Thereafter, and until they return to the bargaining unit, they shall maintain but not accumulate seniority. Upon returning to the bargaining unit a member cannot resume or hold a position outside the bargaining unit for a period of nine (9) months.

ARTICLE 5 – MANAGEMENT RIGHTS

5.01

The Union recognizes and acknowledges that the management of the stations and direction of the working force are fixed exclusively in the Employer, and without restricting the generality of the foregoing; the Union acknowledges that it is the exclusive function of the Employer to:

- (a) maintain order and efficiency and to retain all residual rights of management.
- (b) hire, promote, classify, transfer, suspend, demote, lay-off and rehire paramedic(s), to select and retrain paramedic(s) for positions excluded from the bargaining unit provided the written consent of such paramedic(s) is obtained, and to discipline or discharge any paramedic(s) for just cause provided that a claim by a paramedic(s) that he has been discharged or disciplined without just cause may be the subject of a grievance and dealt with as hereinafter provided;
- (c) make, enforce and alter, from time to time, rules and regulations to be observed by the paramedic(s). The Employer agrees to supply the Local Union with copies of any changes in rules and regulations.
- (d) determine the kinds and locations of stations, equipment and materials to be used, the control of materials and parts, the methods and techniques of work, the content of jobs, the services to be performed, the assignment of paramedic(s) to tasks, the work schedules, the number of paramedic(s) to be employed, the extension, limitations, curtailment, or cessation of operations or any part thereof, and to determine and exercise all other functions and prerogatives which shall

remain solely with the Employer except as specifically limited by the express provisions of this Agreement.

5.02

These rights shall be exercised in a fair and impartial manner and in accordance with the provisions of the Collective Agreement.

ARTICLE 6 – NO STRIKES/LOCKOUTS

6.01

The Union agrees there shall be no strikes and the Employer agrees there shall be no lockouts so long as this Agreement continues to operate. The terms "strike" and "lockout" shall bear the meaning given them in the Ontario Labour Relations Act.

ARTICLE 7 – STEWARDS AND COMMITTEES

7.01

The Employer acknowledges the right of the Union to appoint or otherwise select four (4) Stewards. All Stewards shall have completed their probationary period. The name and area of each of the Stewards shall be given to the Employer in writing and the Employer shall not be required to recognize any such Stewards until it has been so notified.

7.02

The rights of Stewards to leave work without loss of pay to attend to Union business is granted on the following conditions:

- (a) The time taken shall be devoted to prompt handling of necessary Union/Management relations.
- (b) The Steward concerned shall obtain the permission of his **Commander** before leaving his work, and shall report to his **Commander** upon his return. If the Steward's **Commander** is not available, he may deal with a **Commander** who is available. Such approval will not be unreasonably withheld.
- (c) The Steward shall provide sufficient advanced notice to the **Commander** so that the vacancy can be covered if deemed necessary by the **Commander**.
- (d) The Employer reserves the right to limit such time if it deems the time so taken to be excessive.

7.03

The Employer agrees to recognize a negotiating team of three (3) members of the bargaining unit plus a paid representative of the Ontario Public Service Employees' Union. Bargaining unit members shall suffer no loss of pay for time spent in negotiations, including essential services negotiations, up to and including Arbitration.

ARTICLE 8 – HEALTH AND SAFETY

8.01

The Employer shall continue to make reasonable provisions for the safety and health of its paramedic(s) during the hours of their employment. It is agreed that both the Employer and the Union shall cooperate to the fullest extent possible in the prevention of accidents and in the reasonable promotion of safety and health of all paramedic(s).

8.02

In circumstances that the Employer requires the Paramedic(s) to wear safety equipment and/or protective clothing, the Employer shall provide access to these items.

8.03

The obligation contained herein does not apply to the provision of safety footwear or the provision of clothing covered elsewhere in this Agreement.

- 8.04 (a) Recognizing its responsibilities under the applicable legislation, the Employer will establish a Health and Safety Committee with representatives selected or appointed by the Union from amongst bargaining unit paramedic(s) and representatives selected from and by management.
- (b) Such Committee shall identify operational concerns and potential dangers and hazards, recommend means of improving health and safety programs and recommend to the Employer actions to be taken to improve conditions related to the Ambulance Service and health and safety.
- (c) The Parties agree that actual time spent in Committee work will be considered a highly important part of the workers job and the actual time spent in committee activities, including prescribed preparation time, shall be paid in accordance with the Occupational Health & Safety Act, as amended.
- (d) Meetings shall be held every third month or more frequently at the call of either party, if required.
- (e) The Parties agree to co-operate reasonably in providing necessary information to enable the Committee to fulfil its functions.

- (f) The Union agrees to endeavour to obtain the full co-operation of its membership in the observation of all rules and practices concerning the Ambulance Service operations and health and safety practices.

ARTICLE 9 – UNION MANAGEMENT COMMITTEE

9.01

A Union-Management Cooperation Committee shall be established consisting of two (2) representatives of the Employer and two (2) representatives of the Union. The committee shall enjoy the full support of both Parties in the interest of maximum service to the public.

9.02

The Committee shall meet at the request of either the Union or the Employer at a mutually agreeable time and place but in any event, at least once every three (3) months. Members shall endeavour to exchange agenda items at least two (2) weeks in advance of such meeting.

9.03

The Committee shall not have jurisdiction over wages, or any matter of collective bargaining, including the administration of this Collective Agreement. The Committee shall not supersede the activities of any other committee of the Union, or of the Employer, and does not have the power to bind either the Union or its members or the Employer to any decisions or conclusions reached in their discussions. The Committee shall have the power to make recommendations to the Union, and to the Employer, with respect to its discussions and conclusions. The Union and the Employer agree to respond, in writing, to such recommendations within thirty (30) calendar days.

ARTICLE 10 – GRIEVANCE PROCEDURE

10.01

Working days shall mean days upon which the administrative offices of the Employer are open for the transaction of business.

10.02

A grievance shall be defined as a dispute involving the interpretation or alleged violation of this Agreement or related legislation.

10.03

Complaint Stage

A paramedic who has a complaint shall first verbally discuss it with the immediate **Commander** or designate. Such a complaint shall be brought to the attention of the immediate **Commander** and/or designate within ten (10) working days of the incident leading to the alleged grievance or ten (10) working days from the time the circumstances upon which the grievance is based become known to the grievor. The immediate **Commander's** decision shall be given verbally within three (3) working days.

10.04

Grievance Stages:

Failing a satisfactory settlement of the complaint such complaint may, within a period of three (3) working days, be reduced to writing and treated as a grievance in the following manner:

STEP ONE (1)

The paramedic(s), with the assistance of a Steward, shall first take the matter up with the **Chief, Paramedic Services**, or his designate. The **Chief, Paramedic Services** shall render his decision in writing to the paramedic(s) within seven (7) working days of his receipt of the grievance. Failing settlement at this stage, then Step Two (2) may be invoked as follows:

STEP TWO (2)

Within seven (7) working days of the receipt of the answer at Step One (1) (or if no answer is received at Step One (1) then within seven (7) working days after the date upon which such answer ought to have been received) the matter may be referred to the **Chief Administrative Officer** or designate who shall meet with the Parties and render a decision in writing within the next ten (10) working days after the receipt of the grievance.

10.05

Policy/Union grievances shall be instituted at Step Two (2) of the grievance procedure rather than at Step One (1).

10.06

Suspension/dismissal grievances shall be initiated at Step Two (2) of the grievance procedure.

10.07

When a paramedic has been dismissed without notice, (s)he shall have the right to interview his/her Steward for a reasonable period of time before leaving the Employer's premises. Failure to do so will not void the discharge. Such interview will be held at the offices of the Human

10.08

In the event that the grievance is not settled at Step Two (2), the Union or the Employer may refer the grievance to Arbitration.

10.09

The time limits provided for in the Grievance/Arbitration Procedure may be extended with the mutual, written consent of the Parties.

10.10

The replies to grievances stating reasons shall be in writing at all steps.

10.11

No grievance shall be considered in any step unless it has been properly carried through all previous steps of the Grievance Procedure required by this Collective Agreement save only that, if at any step of this Grievance Procedure the Employer or the Union does not give its answer within the allowed time limit, the grievance may be carried to the next step within the appropriate time, which will start to run from the expiration of the allotted time within which the answer should have been given. If the grievance is not processed within any of the time limits specified it shall be deemed to be abandoned.

10.12

All costs associated with securing the services of a Grievance Mediator shall be borne equally between the Employer and the Union.

10.13

Nothing in this Article shall prevent a paramedic having a Steward or designate act for him/her at any stage in the grievance process.

10.14

A paramedic shall be notified in writing, which may be in the form of electronic mail, of any complaint from the public concerning his work within fourteen (14) working days of receipt of the complaint by the E.M.S. Division. This notice shall show particulars of the complaint. The paramedic's written reply to such complaint shall become part of the official record of the complaint. If this procedure is not followed, such complaint shall not become a part of the paramedic's record for use against him/her at any time.

Group Grievance

Any complaint or grievance concerning or affecting a group of employees shall be originated in writing under Step 2 of the grievance procedure and shall be signed by each employee grieving. A group grievance is defined as a complaint that affects more than one (1) employee in the same fact situation.

ARTICLE 11 – MEDIATION/ARBITRATION

11.01

When the Employer or the Union decides that a grievance is to be submitted to Arbitration, including any question as to whether the issue is or is not arbitral, notification shall be given in writing to the Party opposite in interest within one (1) calendar month of the reply at Step Two (2). Such notification shall be submitted by registered mail, and/or facsimile followed by a hard copy, and shall indicate the name and address of the referring Party's nominee to the Board of Arbitration. The recipient of such notice shall within fourteen (14) working days thereafter inform the other of the name and address of its nominee to the Board and the two (2) nominees shall, within ten (10) working days of the appointment of the second of them attempt to select a third member who shall act as Chair.

11.02

If the recipient of the notice fails to appoint a nominee, or if the two (2) nominees fail to agree upon a Chair within the time limits as aforesaid, the appointment shall be made by the Ontario Ministry of Labour upon the request of either Party. It is understood and agreed however, that the Employer and the Union may mutually agree to extend the time limit for selecting the Chair.

11.03

The Board shall determine its own procedure, but shall give full opportunity to all Parties to present evidence and make representations. The Board shall hear and determine the difference or allegation and shall issue a decision and, subject only to the provisions of this Agreement; such decision shall be final and binding upon the Parties and upon any paramedic(s) affected by it. The decision of a majority is the decision of the Arbitration Board and if there is no majority, the decision of the Chair shall govern.

11.04

The Arbitration Board shall not have authority to alter or change any of the provisions of this Collective Agreement, or to substitute any new provisions in lieu thereof, or to give any decision contrary to the express intent or terms or conditions of this Collective Agreement, or in any way modify, add to or detract from any of the provisions of this Collective Agreement.

11.05

The Parties to this Collective Agreement shall pay the fees and disbursements of their respective nominees to a Board of Arbitration and shall share equally in the fees and disbursements of the Chair. The Parties further agreed that, in the event of any cancellation fees being levied by the Board of Arbitration members, the Party responsible for such cancellation shall be solely responsible for all such fees.

11.06

No person who has assisted in the negotiation of this Collective Agreement, or any renewal thereof, may be appointed to such Board of Arbitration.

11.07

The Employer and the Union may, by mutual agreement, in writing, substitute a sole Arbitrator for the Board of Arbitration herein and the sole Arbitrator shall possess the same powers and be subject to the same limitations as the Board of Arbitration.

11.08

The Parties reserve the right to make application for Arbitration using Section 48 (1) of the Ontario Labour Relations Act and should such right be exercised, agrees to inform the other Party in accordance with the time limits specified above.

11.09

Nothing in this Agreement shall preclude the Union and Employer from agreeing to substitute a Mediator/Arbitrator for the Board of Arbitration. If a Mediator/Arbitrator is substituted, each party is responsible for one half (1/2) of the associated fees and expenses.

ARTICLE 12 – ADVANCED CARE PARAMEDIC

12.01

Except in cases where no Primary Care Paramedic who has acquired seniority qualifies or expresses interest in pursuing Advanced Care Paramedic Certification; no full-time Primary Care Paramedic shall be displaced or suffer a reduction in hours or benefits.

ARTICLE 13 – SENIORITY

13.01

Seniority is defined as the length of continuous service in the bargaining unit.

All part-time paramedics in the service of Norfolk County EMS as of January 22, 2013 shall be

credited with all hours worked prior to the date of ratification, as previously established by the posted seniority lists.

The number of hours worked shall be converted to years of seniority based on the formula 2080 hours equals one (1) year.

The paramedic's seniority credit is adjusted back from the date of ratification creating an artificial part time seniority date.

All part-time paramedics hired after date of ratification shall have their date of hire on the part time seniority list as their seniority date.

Full-time paramedics would have their seniority recorded as date of hire, either actual or artificial as established above.

Full time paramedics transferring to part time shall carry their seniority date as previously established for the purpose of recording seniority.

When part-time paramedics move to permanent full-time status, the Employer shall calculate a new artificial seniority date based on all hours worked since the initial calculation.

13.02

The paramedic(s) will be considered on probation for the first nine hundred and sixty (960) hours of his employment. After nine hundred and sixty 960 hours service, his/her seniority shall date back to the day on which his employment began. The dismissal of a probationary paramedic(s), for failure to meet the requirements of the position, shall be at the Employer's discretion and is not subject to the grievance procedure.

13.03

Seniority lists will be revised each six (6) months; a copy of the list will be posted **on the Norfolk EMS intranet site (EMS SharePoint)** and a copy given to the Local president by January 31st and July 31st. When two (2) or more paramedics have the same seniority date their ranking on the seniority list shall be determined by a draw. In other words, the paramedic who draws the lowest number shall be given the highest placing on the seniority list. Such draw shall occur at the commencement of employment and shall be supervised by a representative of the Employer and either the Local Union Steward or Local President.

If a paramedic does not challenge the position of his/her name on the seniority list within one (1) month from the date of posting the list, then (s)he shall be deemed to have proper seniority standing.

13.04

Separate seniority lists shall be prepared for full-time and part-time paramedics.

13.05

Seniority shall terminate and a paramedic shall cease to be employed by the Employer when (s)he:

- (a) Voluntarily resigns employment with the Employer;
- (b) Is discharged and is not reinstated through the grievance procedure or Arbitration;
- (c) Fails to make arrangements with the Employer, within seven (7) calendar days, to return to work after being notified by registered mail by the Employer of recall;
- (d) Fails to return to work upon the termination of an authorized leave of absence unless there has been a mutually agreed upon extension of the leave of absence;
- (e) Accepts gainful employment while on a leave of absence without first obtaining the consent of the Employer in writing;
- (f) Is laid-off for a period longer than twenty-four (24) months;
- (g) Is absent due to sickness or accident for a period longer than twenty-four (24) months, provided such loss of seniority does not violate the Ontario Human Rights Code;
- (h) Is absent from work for two (2) consecutive working days without notifying the Employer.

13.06

It shall be the duty of each paramedic to promptly notify the Human Resources and Staff Development Department, with a copy to the immediate non-union **Commander**, of any change of address. Any notice required of the Employer shall be deemed to have been given, if forwarded by registered mail to the paramedic at the last address of which the Employer had notice.

ARTICLE 14 – JOB SECURITY

14.01

The Employer agrees to notify the Union any time it is contemplating any workplace changes that may affect the employment status of members of the Bargaining Unit. If the Union requests a meeting to discuss these proposals a **meeting between the Union and Management** shall be scheduled in a timely manner.

14.02 Notice Of Layoff

In the event of a proposed layoff of a permanent nature or the elimination of a position within the Bargaining Unit:

- (a) The Employer shall endeavour to provide the Union with six (6) months written notice of the proposed layoff or elimination of position(s); and,
- (b) provide to the affected paramedic(s) two (2) weeks' notice, or payment in lieu of notice, for each year of service to a maximum of twelve (12) weeks; provided the affected paramedic(s) has more than twelve (12) months service, otherwise those "short-term" paramedic(s) will be entitled to notice in accordance with the Employment Standards Act.
- (c) Years of service for the purpose of this Article shall be calculated from the expected date of layoff.

Note: Where a proposed layoff results in the subsequent displacement of any member(s) of the bargaining unit, the original notice to the Union provided in (a) above shall be considered notice to the Union of any subsequent layoff.

14.03 Layoff And Recall

A paramedic in receipt of notice of layoff pursuant to 14.02 may:

- (a) accept the layoff; or,
- (b) opt to retire, if eligible under the terms of the OMERS Pension Plan; or
- (c) displace another paramedic who has lesser bargaining unit seniority in a lower-paying or an identical-paying classification in the bargaining unit if the paramedic originally subject to layoff possesses the necessary knowledge, skill and ability, as identified in Article 4.04, and is able to perform the duties without training other than orientation.

A full-time paramedic has the right to displace a part-time paramedic with lesser seniority but a part-time paramedic cannot displace a full-time paramedic under any circumstances.

A paramedic who chooses to exercise the right to displace another paramedic shall advise the Employer of his or her intention to do so and the position claimed within seven (7) calendar days after receiving the notice of layoff. A paramedic so displaced shall be deemed to have been laid off and shall be entitled to notice in accordance with Article 14.02. The General Manager, **Employee and Corporate Services** shall render a decision promptly.

- (d) A paramedic who is subject to layoff other than a layoff of a permanent or long-term nature shall have the right to accept the layoff or displace another paramedic in accordance with (a) or (c) above, only.

14.04 Recall

- (a) A paramedic shall have opportunity of recall from a layoff to an available opening, in order of seniority, provided he or she has the necessary knowledge, skill and ability to perform the work before such opening is filled on a regular basis under a job posting procedure. The posting procedure in this Collective Agreement shall not apply until the recall process has been completed.
- (b) A paramedic recalled to work in a different classification from which he or she was laid off shall have the privilege of returning to the position held prior to the layoff should it become vacant within (24) twenty-four months of the effective date of the paramedic's layoff and provided he or she still has the necessary knowledge, skill and ability to perform the work.
- (c) In determining the knowledge, skill and ability of a paramedic to perform the work for the purposes of 14.04 (a) and (b), the Employer shall not act in an arbitrary or unfair manner.
- (d) No new paramedic shall be hired until all those laid off have been given an opportunity to return to work and have failed to do so, in accordance with the loss of seniority provision, or have been found unable to perform the work available.
- (e) The Employer shall notify the paramedic of recall opportunity by registered mail, addressed to the last address on record with the Employer (which notification shall be deemed to be received on the second day following the date of mailing). The notification shall state the job to which the paramedic is eligible to be recalled and the date and time at which the paramedic shall report for work. The paramedic is solely responsible for his or her proper address being on record with the Employer.
- (f) Paramedic(s) on layoff shall be offered temporary vacancies which are expected to exceed ten (10) scheduled shifts.
- (g) No full-time paramedic within the bargaining unit shall be laid off by reason of his/her duties being assigned to one (1) or more part-time paramedic(s).
- (h) On lay off, a full-time paramedic will be offered first opportunity to work available part-time hours. This opportunity applies for the duration of lay off as long as recall rights exist for the laid off paramedic. Any severance pay owed to such paramedic in the event of lay off is not payable for the duration of time during which the paramedic is accessing part-time hours under this provision. If the paramedic has not been recalled to full-time employment as of expiration of his recall rights, his/her severance pay entitlement will be based on the paramedic's entitlement to severance pay as a full-time paramedic and will be paid as of the expiration of

recall rights. On payment of severance pay, any subsequent access to part-time employment is only on the mutual agreement of the Employer and paramedic(s).

14.05 Benefits On Layoff

The Employer agrees that full-time paramedics laid off for periods of less than twelve (12) months shall have the right to maintain in force the Extended Health Care Plan and Dental Plan as long as the full-time paramedic does not attain employment outside of this Employer, by making payment to the Employer of the premium costs of same, it being understood that the Employer shall, in such event, remit the premiums as aforesaid to the insuring agencies on behalf of any full-time paramedic so affected. It is further understood that any obligation on the part of the Employer to make payment of such premiums on behalf of full-time paramedics or pursuant to this clause, shall cease at the expiration of the twelve (12) month period as aforesaid.

14.06 Technological Change

The Employer undertakes to notify the Union in advance, so far as practicable, of any technological changes which the Employer has decided to introduce which will significantly change the status of paramedics within the bargaining unit.

The Employer agrees to discuss with the Union the effect of such technological changes on the employment status of paramedics and to consider practical ways and means of minimizing the adverse effect, if any, upon paramedics concerned.

14.07 Contracting Out

Paramedics who have seniority shall not lose their jobs as a direct result of the contracting out of any of the services of the Employer.

14.08

Paramedics not covered by the terms of this Agreement will not perform duties normally assigned to those paramedics who are covered by this Agreement, except for the purposes of instruction, experimentation, or in emergencies when regular paramedics are not readily available. Notwithstanding the above, it is agreed that **Commanders** and persons above the rank of **Commander** shall be entitled to perform bargaining unit work to the extent that those paramedics collectively performed such work prior to December 1, 2001, to a maximum of two hundred and fifty-two (252) regular hours per week.

14.09 Job Security

The parties agree that during an investigation conducted by the County and/or MOHLTC, the County and/or MOHLTC may determine that they wish to remove a paramedic from his/her regular duties. In this situation, the County will either reassign the paramedic with pay to other duties or place him/her on leave of absence with pay at the Employers option.

Justice and Dignity

The parties agree that during an investigation by Base Hospital, the County may determine that they wish to remove a paramedic from his/her regular duties. In this situation, the County, at its discretion will either reassign the paramedic with pay to other duties or place him/her on leave of absence without pay.

14.10 Deactivation/Decertification

A paramedic who is deactivated and/or decertified will be placed on a leave of absence without pay for a maximum of a three (3) month period during which time such paramedic is expected to obtain a reactivation and/or recertification. If the paramedic has not obtained reactivation and/or recertification within this three (3) month period, the paramedic may be terminated. If the paramedic is successful in obtaining reactivation and/or recertification during the three (3) month period, he/she will return to active paid duty as a paramedic. In extenuating circumstances, the parties may mutually agree to extend the three (3) month period for obtaining reactivation/recertification. The Employer will communicate with base hospital to facilitate that the training and reactivation and/or recertification takes place within the stated time periods. In addition, the Employer shall provide for the necessary remedial training and materials needed to assist the paramedic in achieving reactivation and/or recertification. A paramedic who is directed by the Director of Emergency Health Services Branch, Ministry of Health and Long Term Care to take a re-qualifying examination, shall, if told they are not qualified to work as a paramedic, be placed on a leave of absence without pay to a maximum of six (6) months. The Employer will provide for the necessary remedial training and material needed to assist the paramedic(s) in successfully completing the re-qualifying examination.

ARTICLE 15 – SEVERANCE

15.01

A paramedic with one (1) year of service shall be entitled to receive, on separation from employment, severance pay of one (1) week's pay per year of service, up to a maximum of twenty-six (26) weeks of pay.

15.02

Such severance pay shall only be provided in cases of separation from employment due to:

- (a) Indefinite layoff, in which case the paramedic must waive his/her right to recall from lay-off, in writing, as a condition of receiving severance pay;
- (b) Retirement at age fifty-five (55) or later into a pension plan, including a disability pension;
- (c) The paramedic being unable to meet the conditions of employment due to physical or mental health reasons, which result in a termination by the Employer. In such case, on the written request of the paramedic, payment of severance pay may be

into a R.R.S.P., subject to applicable laws, or R.R.I.F. established by the paramedic. It is understood that if contributions cannot be made into an R.R.S.P. due to contribution caps being exceeded, the remainder of the severance pay is not forfeited but rather is paid out.

ARTICLE 16 – HOURS OF WORK AND OVERTIME

16.01

The normal hours of work per day shall be eight (8), ten (10) or twelve (12) hours as applicable and the normal hours of work per week shall be forty (40) or forty-two (42) hours per week as averaged over the two (2) week scheduling period. These provisions are intended to define the normal hours of work and shall not be construed as a guarantee of hours of work per day or per week, or of days of work per week.

16.02

- (a) Where a paramedic works in excess of his normal work day (of at least eight (8) hours) or a paramedic works in excess of forty-two (42) hours per week, (s)he shall be paid for such time worked in excess at the rate of one and one-half (1-1/2) his/her regular hourly rate.
- (b) Time paid for work in excess of the end or beginning of a scheduled shift (shift over-run) shall be paid in quarter (1/4) hour increments as follows:

<u>Time worked</u>	<u>Time paid</u>
0 – 15 minutes	nil
16 – 30 minutes	½ hour
31 – 45 minutes	¾ hour
46 – 60 minutes	1 hour
61 – 75 minutes	1-¼ hours
76 minutes or more	In further ¼ hour increments as above

16.03

In developing schedules of work for full-time paramedics there shall be no split-shifts. The Employer shall also endeavour to schedule days off consecutively and to distribute free weekends equally.

16.04

The procedure for filling open shifts is attached as Schedule C which is attached to and forms part of this Agreement.

16.05

The non-operational duties shall be divided as equally as possible among paramedics on any shift; each paramedic shall be responsible for the cleanliness of ambulances and stations.

16.06

The Employer shall endeavour to post the normal hours of work and days of work for each paramedic in an appropriate place at least four (4) weeks in advance.

16.07

When a paramedic reports for work at the commencement of his/her scheduled shift and upon his/her arrival finds no work available for him/her, (s)he shall be paid for four (4) hours at his/her regular hourly rate. When a paramedic completes four (4) hours of work on his/her scheduled shift, and thereafter finds no work available for the remainder of such shift, (s)he shall be paid for his/her full shift at his/her regular hourly rate of pay.

16.08

Paramedics may initiate shift exchanges to a maximum of **twenty-six (26)** shifts per calendar year, providing forty eight (48) hours' notice of such request is provided to the **Commander**. Approval of such requests shall be subject to the operational requirements of the service and shall not be unreasonably denied. No overtime shall be paid as a result of the shift change with the exception of any shift overrun that may occur. There should be no open shift changes. There will be no shift changes on shifts that are previously approved shift exchanges **of the same scheduled time**. All shift exchanges must occur within sixty (60) days with the exception of changes of statutory holidays for statutory holidays within a pay year. Once a shift exchange has been approved by the Employer, it is considered a schedule change and therefore the responsibility lies with each Paramedic agreeing to the arrangement.

16.09 Daylight Savings Time

Paramedics scheduled to work on the shift when clocks are adjusted for the purposes of daylight savings time shall be paid for the actual number of hours worked. Overtime premium, where applicable, shall be paid as outlined in Article 16.02 (a).

ARTICLE 17 – SHIFT PREMIUM

17.01

A paramedic shall receive a night shift premium of **seventy-five cents (\$0.75) effective April 1, 2018 and eighty cents (\$0.80) effective April 1, 2019**, per hour worked between 7 pm (19:00 hours) and 7 am (07:00 hours) on weekdays from Monday to Thursday. A weekend shift premium at the same rate as the night premium will be paid for all hours worked from 7 pm (19:00 hours) on Friday evening to 7 am (07:00 hours) on Monday morning.

Shift premiums shall not be considered as part of a paramedics' basic rate of pay.

17.02

There shall be no pyramiding of overtime premiums with any other premiums specified in this agreement.

ARTICLE 18 – DESIGNATED HOLIDAYS

18.01

The following are recognized as designated holidays:

New Year's Day	Victoria Day	Thanksgiving Day
Family Day	Canada Day	Remembrance Day
Good Friday	Civic Holiday	Christmas Day
Easter Monday	Labour Day	Boxing Day

and any statutory holiday proclaimed by the Federal, Provincial or Municipal Government.

18.02

Paramedics who are required to work on a designated holiday shall receive double (2X) basic hourly salary times all hours worked on the holidays listed in this Article.

In addition to the above, such paramedic who works on the holiday shall receive either equivalent statutory holiday pay at the paramedics basic hourly rate or equivalent compensating leave, provided the paramedic opts for compensating leave prior to the holiday.

18.03

A paramedic who does not work on a designated holiday is entitled to holiday pay in accordance with the Employment Standards Act.

For part-time paramedics the entitlement to pay on any of the aforementioned recognized holidays shall be subject to the following qualifying conditions:

- (a) the paramedic must work twelve (12) days of the twenty-eight (28) days which preceded the week of the holiday and their scheduled day before and after the holiday, unless absence is the result of personal illness or accident in which case the Employer may require verification by a medical doctor's certificate as to the illness or accident;
- (b) a paramedic who has not worked twelve (12) days of the twenty-eight (28) days which preceded the holiday, (but who has worked their scheduled day before and after the holiday, unless absence is the result of personal illness or accident in

which case the Employer may require verification by a medical doctor's certificate as to the illness or accident) shall have payment for the paid holiday pro-rated on the following basis:

Payment for the paid holiday shall be pro-rated on the basis of the number of days worked in the six (6) week period prior to the paid holiday.

18.04

If a designated holiday falls within a vacation period the displaced vacation date shall be scheduled at a mutually agreeable time.

ARTICLE 19 – VACATIONS WITH PAY

19.01

A regular full-time paramedic shall be granted a vacation with pay based upon active, continuous service in accordance with the following:

- (a) A new regular full-time paramedic will be granted a vacation in the first calendar year of employment at the rate of ten (10) hours of vacation for each month of active, continuous service to the end of that year to a maximum of one hundred and twenty (120) hours;
- (b) A full-time paramedic who has completed one (1) year of active, continuous service in the calendar year following that in which employment started will receive in that following year three (3) weeks' vacation with pay and the same for each year thereafter until five (5) years of active, continuous service;
- (c) A full-time paramedic shall be granted four (4) weeks' vacation with pay in the year in which (s)he completes six (6) years of active, continuous service, and in those years thereafter;
- (d) A full-time paramedic shall be granted five (5) weeks' vacation with pay in the year in which (s)he completes eleven (11) years of active, continuous service, and in those years thereafter;
- (e) A full-time paramedic shall be granted six (6) weeks' vacation with pay in the year in which (s)he completes nineteen (19) years of active, continuous service, and in those years thereafter;
- (f) Commencing with the year in which a paramedic attains twenty-five (25) years of service they shall receive one (1) additional day of annual vacation with pay. Such entitlement shall increase by one (1) additional day of vacation for each two (2) years of service thereafter, to a maximum of five (5) additional days of vacation;

- (g) A full-time paramedic may, with the approval of the **Chief, Paramedic Services**, carry over to the immediately following year, one-half (1/2) of the current years' vacation entitlement, to a maximum of two (2) weeks.

19.02

During the first calendar year, part-time paramedics shall receive vacation pay equal to four percent (4%) of the wages of the paramedic(s) in the twelve (12) months of employment for which the vacation is given.

In calculating wages for vacation percent, no account shall be taken of any vacation pay previously paid.

After the first calendar year, the part-time paramedic shall receive vacation pay equal to five percent (5%) of the wages of the paramedic in the twelve (12) months of employment for which the vacation is given.

After the fifth calendar year (years 5 and beyond), the part-time paramedic shall receive vacation pay equal to six percent (6%) of the wages of the paramedic in the twelve (12) months of employment for which the vacation is given.

Vacation pay earned shall be paid along with the part-time paramedic's regular pay.

19.03

A paramedic terminating his/her employment or retiring from employment at any time in his/her vacation year before (s)he has received the vacation due to him/her for such vacation year shall be entitled to a proportionate amount of salary or wages in lieu of such vacation.

19.04

Full-time paramedics who indicate their vacation preference prior to October 1 with approval by November 1, for the following year will have their vacations approved in order of seniority. The Employer shall endeavour to give either Christmas or New Year's off, on a rotating basis. During this initial allotment, it is understood that in any given 24 hour day (0700-0700) **6** full time paramedics will be granted vacation. Additional vacation requests may be granted for any given day based on availability of shift coverage. During the period of time from December 24 at 0700 hours and January 1 at 1900 hours, the Employer will endeavor to provide **5** full time paramedics vacation based on availability. This preference will be in writing on a form to be provided by the Employer.

If a full-time paramedic does not indicate their vacation preference by October 1 in each year, vacations requested will be approved on a first come basis, based on operational needs. Full-time paramedics must submit **fifty percent (50%) of their annual vacation allotment before April 1 of the current year.**

Vacation schedules will be posted by November 1 of each year at the latest, to begin January 1 unless otherwise agreed.

Payout of remaining vacation entitlement will only be made in extenuating circumstances as determined by the Employer.

Once posted, vacations may only be changed by mutual agreement between the paramedic and the **Commander**.

19.05

If a full-time paramedic is absent without pay for a period of thirty (30) calendar days or longer then such paramedic's vacation entitlement in the year in which the unpaid absence occurs shall be reduced in proportion to the number of working days lost during such absence.

19.06

Upon the death of a full-time paramedic, the Employer shall pay vacation pay earned to the date of death less the amount used in that year and less statutory deductions to the paramedic's estate.

19.07

A full-time paramedic who terminates in a calendar year after having taken vacation will be required to pay back to the Employer any amount of vacation paid in advance over and above the amount owing to such paramedic on the basis of service.

ARTICLE 20 – SICK LEAVE / SHORT TERM DISABILITY PLAN

20.01

Sick leave means the period of time a full-time paramedic continues to receive their normal hourly rate of pay while absent from work by virtue of being sick or disabled or because of an accident for which compensation is not payable under WSIB.

20.02

All full-time paramedics who have successfully completed their probationary period will earn eight (8) hours of sick leave credits for each month of scheduled employment in each calendar year. The full-time paramedic sick leave bank will be credited, in advance, with ninety-six (96) hours of sick leave on January 1st for that calendar year.

20.03

A full-time paramedic who terminates in a calendar year after having taken sick leave will be required to pay back to the Employer any amount of sick leave paid in advance over and above the amount owing to such full-time paramedic on the basis of service.

20.04

Unused sick leave credits will not carry-over from year to year, however, fifty percent (50%) of those unused sick leave credits which have been earned but not used in any calendar year will be paid-out in January of the following year and at the full-time paramedics' basic rate of pay. Full-time paramedic(s) hired after January 14, 2003 will not be entitled to any pay out of unused sick leave.

20.05

When absent due to sickness a paramedic must speak directly with the **Commander/Duty Officer**. Failure to do so may entail a loss of sick pay. The paramedic must then contact a **Commander** between the hours of 7:00 am (07:00 hours) and 3:00 pm (15:00 hours) and at least four (4) hours prior to his/her next scheduled regular shift or stand-by shift to advise if (s)he is able to return to work. If the absent paramedic fails to speak directly with the **Commander/Duty Officer** before this time, his/her shift will be replaced.

20.06

A paramedic may be required to produce a medical certificate from a duly qualified medical practitioner for absences from work where such paramedic has been absent for more than three (3) scheduled shifts. The certificate must state that the paramedic is able to return to work, and capable of performing his required duties. Such certificate must be produced prior to the paramedic returning to work. If deemed necessary by Norfolk County a medical certificate may be required from a paramedic who has been absent for three (3) scheduled shifts or less.

20.07 Short Term Disability Plan

The Employer shall provide an income replacement benefit plan to bridge the period between the exhaustion of sick leave credits and the commencement of long term disability. Full-time paramedics shall be entitled to receive a total weekly income amounting to seventy-five (75%) percent of their regular weekly wages for up to sixteen (16) weeks, commencing on the eighth (8th) day of absence due to disability or injury not covered by WSIB and the first day of absence due to hospitalization. The attached Letter of Understanding shall show the particulars of this plan and shall be signed separate and apart from this Collective Agreement.

20.08 Quarantine

Any time lost by a paramedic as a result of being quarantined by a certified medical practitioner, under the authority of the Medical Officer of Health, other than those which are job related and

would be covered under WSIB shall be treated as a leave of absence with pay for the duration of the quarantine. Documented proof of the exposure, quarantine and quarantine period shall be provided to the Employer.

ARTICLE 21 – PREGNANCY AND PARENTAL LEAVE

(Supplementary Employment Benefit Plan)

21.01

In respect of the period of pregnancy leave, payments made according to this Supplementary Employment Benefit Plan (SEB) will consist of the following:

- (a) For the **one (1)** week Employment Insurance waiting period, payments equivalent to **seventy-five (75%)** percent of the paramedic's regular weekly rate of pay prior to the commencement of the leave.
- (b) Up to a maximum of **sixteen (16)** additional weeks, payments equivalent to the difference between the sum of the weekly Employment Insurance benefits the paramedic is eligible to receive and any other earnings received by the paramedic, and **seventy-five (75)** percent of the actual weekly rate of pay prior to the commencement of the leave.

21.02

In respect of the period of parental leave, payments made according to this SEB Plan will consist of the following:

- (a) For the **one (1)** week Employment Insurance waiting period, payments equivalent to **seventy-five (75%)** percent of the paramedic's regular weekly rate of pay prior to the commencement of the leave.
- (b) Up to a maximum of **eleven (11)** additional weeks, payments equivalent to the difference between the sum of the weekly Employment Insurance benefits the paramedic is eligible to receive and any other earnings received by the paramedic, and **seventy-five (75)** percent of the paramedic's regular weekly rate of pay prior to the commencement of the leave.

Notwithstanding the foregoing, the top up entitlements for an employee who elects to receive a lower employment insurance benefit spread over a longer period of time as may be permitted by the Employment Insurance Act (Canada) will not cumulatively exceed the Employer's obligation without such election.

ARTICLE 22 – LEAVE OF ABSENCE

22.01 Personal Leave

The Employer may grant leave of absence without pay to a paramedic for personal reasons for up to one (1) year, and any person who is absent with such written permission shall continue to accumulate his/her seniority for such leave. This leave must be approved by **Chief, Paramedic Services** for absences of up to two (2) weeks, anything longer must be approved by the **Chief Administrative Officer**.

It is agreed that the Employer may replace a full-time paramedic on a leave of absence with a part-time paramedic who may regularly work up to forty (40) or forty-two (42) hours a week and maintain his or her status as a part-time paramedic for all purposes under the Collective Agreement. Part-time paramedic(s) shall be offered full time temporary contracts on a seniority basis. If the most senior Part-time paramedic is on a temporary contract (regardless of the length) the contract shall be offered to the next most senior Part-time paramedic.

22.02 Bereavement Leave

- (a) Paramedics will be granted four (4) consecutive working days bereavement leave without loss of pay upon the death of a paramedic's spouse or child.
- (b) A paramedic shall be granted three (3) consecutive working day's leave of absence without loss of pay upon the death of the paramedic's parent, sister, brother, parent-in-law, grandparent, spouse's grandparent, son-in-law, daughter-in-law or grandchild. Such leave shall be completed by the end of the second working day following the funeral.

The following definition of spouse will be used to determine the entitlement of paramedics who are in "common-law" or same sex relationships, to bereavement leave in the event of the death of any of the individuals listed above.

"Spouse" shall be defined as an individual with whom the paramedic is not married, but has co-habited,

- (i) continuously for a period of not less than one (1) year, or
 - (ii) in a relationship of some permanence, if they are the natural or adoptive parents of a child.
- (c) Paramedics will be granted two (2) consecutive working days bereavement leave without loss of pay on the death of an paramedic's brother-in-law, sister-in-law, aunt, uncle, niece or nephew. Such leave shall be completed by the end of the second working day following the funeral.

When the paramedic is unable to attend the funeral of those specified in Article 23.02 (a), (b) or (c), due to distance or time of such funeral, the paramedic shall

be granted a one day leave of absence with pay on the day of the funeral as a day of mourning.

- (d) The Employer will endeavour to grant one-half (1/2) day's leave without loss of wages to attend the funeral of a fellow paramedic or any other Norfolk County paramedic(s) with whom the paramedic(s) worked on a regular basis, while ensuring the operational services are maintained.

To qualify for all entitlement under this Article, the relationship between the paramedic and the deceased, as referred to in this Article, must be current at the time of death.

22.03 Jury/Witness Duty

Each paramedic who is summoned and reports for jury duty during his/her regular working hours shall be paid by the Employer the difference between the paramedic(s)'s regular straight time hourly rate, and the daily jury duty fee paid by the Court. In order to be entitled to such pay from the Employer, a paramedic must give notice of selection for jury duty.

Each paramedic who is required to appear in court during his/her regularly scheduled shift as a result of a service-related incident which occurred during the course of his/her work shall receive their regular pay for the day as though they had been at work. The paramedic should always wear uniform during court session. Once court has concluded, or the presence of the paramedic is no longer required, the paramedic will notify their duty officer for direction for work.

Each paramedic who is required to appear in Court during his/her scheduled time off as a result of a service-related incident which occurred during the course of his/her work shall be paid for all time spent in court at straight time and have their day off rescheduled at a mutually agreeable time. Once court has concluded, or the presence of the paramedic is no longer required, the paramedic will notify their duty officer.

22.04 Paternity Leave

A paramedic whose wife, or common-law wife, is about to deliver a child shall be granted three (3) consecutive shifts leave of absence, with pay, to attend the delivery and care for his family thereafter.

22.05 Leave for Union Business

Union leave shall be granted to up to two (2) paramedics at any one time to attend Union meetings or seminars, provided that at least seven (7) days' written notice prior to the leave is given by the Union to the **Chief, Paramedic Services**, or his designate. The total number of days off in any one calendar year shall not exceed twenty-five (25) working days for this bargaining unit.

22.06

- (a) (i) Upon request by the Union, confirmed in writing and provided that seven (7) days written notice is given, leave of absence with no loss of pay and with no loss of credits shall be granted to paramedics elected as Executive Board Members and Executive Officers of the Union, for the purpose of conducting the internal business affairs of the Union.
- (ii) The Union will reimburse the Employer for the wages paid to members of the Executive Board or Executive Officers or the replacement costs if such costs are greater than the wages paid where a leave of absence is granted under this Article.
- (b) (i) When an paramedic is elected as the Union's President or First Vice-President, the Union will, immediately following such election, advise the Employer of the name of the paramedic so elected. Leave of absence with pay shall be granted from the paramedic's place of employment for the duration of the current term of office and such wages shall be reimbursed by the Union to the Employer.
- (ii) On completion of the paramedic's term of office, the President or First Vice-President/Treasurer may return to their previous employment and service shall be deemed to be continuous for all purposes. Any leave of absence extending beyond the initial term of office of the President or First Vice-President/Treasurer shall be a matter to be determined between the Parties and such additional leave shall be subject to the same conditions and terms as prevailed in the initial leave of absence.
- (iii) During the term of such leave of absence, the Union will reimburse the Employer for the salary paid to the paramedic on such leave of absence and contribute the Employer's share of contributions to the OMERS Pension Fund and the Canada Pension Plan. The Union will make the Employer's contribution to any prevailing health or other plans applicable to the elected paramedic(s) and pay the costs of attendance credits accumulated during the leave of absence. The Union will make the Employer's contribution for Employment Insurance.

22.07

All requests for leave of absence permitted in these sections shall be sent to the Employer. It is understood that leaves requested by the Union may be withheld if such leave interferes with the operational requirements of the Employer. In the event of a leave of absence under this Article, the Employer may hire a temporary paramedic, who will not be placed on any benefit plans for the duration of the leave.

A paramedic shall be entitled to three (3) consecutive hours for the purpose of voting at any provincial or municipal election or referendum and four (4) consecutive hours for any federal election. If the normal hours of employment do not allow this, such additional time shall be given at the convenience of the Employer, as may be necessary to provide such hours while the polls are open. The paramedic shall suffer no loss of pay for such absence.

ARTICLE 23 – HEALTH AND WELFARE BENEFITS

23.01

(a) Extended Health Care – Full-Time Paramedics Only

All full-time paramedics may participate in the Extended Health Care Plan. The Employer shall pay one hundred (100%) percent of the premium for such insurance. The annual deductible is ten (\$10) dollars for single coverage and twenty (\$20) dollars for family coverage. The physiotherapy care which is part of the Extended Health Care Plan shall provide for five hundred (\$500) dollars per family member per calendar year. The amount of reimbursement for vision shall be **January 1, 2018 – three hundred seventy-five (\$375.00)** dollars per family member every twenty-four (24) months for either eyeglasses or contact lenses. This coverage will include the payment of the vision examination fee every twenty-four months to the *usual and customary Green Shield reimbursement rate*.

(b) Group Life Insurance and Accidental Death and Dismemberment

All full-time paramedics shall participate in the Group Life Insurance and Accidental Death and Dismemberment Plans. The Employer shall pay one hundred (100%) percent of the premium for such insurance. The current coverage is one and one-half (1 ½) times the annual salary rounded to the next highest one thousand dollars (\$1,000) to a maximum of one hundred twenty-five thousand (\$125,000) dollars.

(c) Long Term Disability

All full-time paramedics shall participate in the Long Term Disability Plan. The Employer shall pay one hundred (100%) percent of the premium for such insurance. Effective February 1, 2013, the coverage is seventy (70%) percent of monthly earnings to a maximum of four thousand, five hundred (\$4,500) dollars per month.

Coverage and Long Term Disability benefits cease the earlier of:

- (1) the date the paramedic reaches retirement age or;
- (2) the date upon which the paramedic retires;

(3) age 65

(d) Dental Plan

All full-time paramedics may participate in the Dental Plan. The Employer shall pay one hundred (100%) percent of the premium for such coverage. The current Dental Plan in effect is Green Shield 2V. The previous year's ODA fee schedule will apply.

(e) Term Life Insurance for Early Retirees

Full-time paramedics retiring under the provisions of the OMERS pension plan shall receive a ten-thousand dollar (\$10,000) life insurance policy which shall terminate at age sixty-five (65).

23.02

- (a) The terms of the Policies and the rules and requirements of the various Carriers of these Benefit Plans shall govern.
- (b) It is agreed that no change in any benefit plan, as outlined in Schedule A, will be made which would reduce any benefits without prior written agreement between the Parties.

23.03

The Employer shall pay for each participating full-time paramedics the costs of the Benefit except that:

- (a) In the case of absence for illness, the Employer contribution will be made to the above Plans to a maximum of six (6) months from commencement of the absence, or the sick leave bank is exhausted, whichever is later, for each participating paramedic on the Seniority List. Thereafter, to maintain coverage, the paramedic must pay the full premiums by the first (1st) day of each month following or by some other mutually satisfactory arrangement between the paramedic and the Employer.
- (b) A person on leave of absence due to personal reasons at the date such pay deduction for the Benefit Plan is scheduled to be made must (if coverage is to be continued) pay the total monthly cost to the Employer by the first (1st) day of each month if so arranged with the Employer.
- (c) A person who is laid off for a period in excess of thirty (30) days shall cease to qualify for the above benefits immediately upon layoff.

23.04

A paramedic is required to provide sufficient notice to the Human Resources & Staff Development Department where a change is required to be made to:

- (a) benefit coverage, entitlement or exemption status;
- (b) residence, telephone, marital or dependents status.

The Employer will make the necessary change upon receipt of the written notice or the requested effective date, whichever is later, but in no case shall the effect of the change be retroactive.

23.05

It is recognized that a paramedic must be a permanent full-time paramedic for three (3) months to be eligible for the full-time benefits outlined in Article 24.01.

23.06

The following provision shall be applicable to paramedics who retire on or after January 3, 2013.

In the case of retirement prior to age sixty-five (65), if the paramedic is fifty-five (55) years of age or older and eligible for early retirement under the OMERS pension plan, the Corporation agrees to provide a health care spending account in the amount of one thousand, two hundred, fifty (\$1,250) dollars each April 1st commencing April 1st, 2013 between the date of retirement and the date of the paramedic's sixty fifth (65th) birthday. The health care spending account shall be used for extended health and dental benefits as allowed by Canada Revenue Agency (CRA). Should the paramedic die prior to age sixty-five (65), the health care spending account shall terminate on the first March 31st following the death.

ARTICLE 24 – PENSION

24.01

The Employer agrees to make regular contributions on behalf of full-time paramedics into the OMERS Pension Plan.

The Employer agrees to make regular contributions on behalf of part-time paramedics who meet eligibility requirements and who have expressed an interest, in writing, in participating in the Plan.

ARTICLE 25 – UNIFORMS AND MEAL ALLOWANCES

25.01 Meals

Where a paramedic is required to be away from home base over the regular meal period, the Employer shall pay a meal allowance of not more than ten (\$10.00) dollars, with a lunch period being defined as 11:30 to 13:30 hrs and a dinner period being defined as 17:00 to 19:00 hrs, subject to the paramedic providing original receipts to the Employer. Evening/night shift paramedics away from home base over the regular meal period shall be entitled to the meal allowance between 23:30 and 01:30, subject to the paramedic providing original receipts to the Employer.

25.02 Uniforms

The Employer agrees to initially provide one (1) black belt to each full-time paramedic and to provide six (6) shirts, four (4) pairs of trousers to such paramedics. The distributions to such paramedic(s) following the initial distribution will be annually, not to exceed in any year one-half (1/2) of the initial distribution.

One (1) winter parka and one (1) spring jacket will also be provided as deemed necessary by the Employer.

25.03 Safety Footwear

The Employer will provide one hundred and seventy five (\$175) dollars on a pay issued in January of each year to every full and part-time paramedics for the purpose of purchasing appropriate safety footwear.

All full and part-time paramedics are required to purchase and wear safety footwear while at work, as required or directed. All safety footwear must be equivalent to, or exceed, the Grade 1 green patch standard as outlined in C.S.A Standard Z195-M92 unless such other standards are established and published by the Employer, in consultation with the Joint Health and Safety Committee.

It is the expectation of the Employer that safety footwear is maintained in such a fashion as it will continue to provide the degree of protection for which it was intended or it will be replaced at the paramedic's expense.

ARTICLE 26 – NEW/CHANGED CLASSIFICATIONS

26.01

When a new classification (which is covered by the terms of this Collective Agreement) is established by the Employer, the Employer shall determine the rate of pay for such new classification and notify the local Union of the same. If the local Union challenges the rate, it shall have the right to request a meeting with the Employer to endeavor to negotiate a mutually satisfactory rate. Such request will be made within ten (10) calendar days after the receipt of notice from the Employer of such new occupational classification and rate. Any change mutually agreed to resulting from such meeting shall be retroactive to the date that notice of the new rate was given by the Employer. If the Parties are unable to agree, the dispute concerning the new

rate may be submitted to arbitration as provided in the Collective Agreement within fifteen (15) calendar days of such meeting.

26.02

When the Employer makes a substantial change in the job content of an existing classification which in reality causes such classification to become a new classification, the Employer agrees to meet with the Union if requested to permit the Union to make representation with respect to the appropriate rate of pay.

26.03

If the matter is not resolved following the meeting with the Union the matter may be referred to arbitration as provided in the Collective Agreement within fifteen (15) calendar days of such meeting.

26.04

The Parties further agree that any change mutually agreed to or awarded as a result of Arbitration shall be retroactive only to the date that the Union raised the issue with the Employer.

ARTICLE 27 – MISCELLANEOUS

27.01

The Parties agree to share equally the cost of printing the Collective Agreement for execution by the Parties. The Collective Agreement will be printed and distributed to paramedics within six (6) months following ratification or the release of any arbitration award, whichever is applicable.

ARTICLE 28 – TRAINING

28.01

The Employer will endeavour to schedule in-house training sessions during regular working hours. In the event that this is not feasible, and such training occurs outside regular hours, the paramedic shall be paid his/her regular straight time rate of pay for each hour of such training.

ARTICLE 29 – EMPLOYMENT INSURANCE REDUCTION

29.01

If and when the sick leave gratuity plan qualifies for any reduction in premiums payable for Employment Insurance, all such reduction shall accrue to the credit of the Employer and the paramedic shall not be entitled to claim any portion of such reduction as a result of other benefits received.

ARTICLE 30 – CORRESPONDENCE

30.01

All written communications relating to matters arising out of this Collective Agreement will be addressed as follows:

To the County: The Corporation of Norfolk County
Human Resources & Staff Development Department
185 Robinson St. Suite 300
Simcoe ON, N3Y 5L6

Attn: Erin **Anderson**
Manager, Human Resources & Staff Development

Telephone: 519/426 5870
Facsimile: 519/427 5902
E-mail: **erin.anderson@norfolkcounty.ca**

To the Union: Ontario Public Service Employees' Union
2285 Highway 20 East
Fonthill, ON, L0S 1E6

Attn: Paul Attard
Regional Staff Representative
Telephone: 905/892-5729
Facsimile: 905/892-7662
E-mail: **pattard@opseu.org**

ARTICLE 31 – DURATION

31.01

The Collective Agreement shall be effective **April 1, 2016** and expire **March 31, 2020**. It shall continue in effect from year to year thereafter unless either Party gives notice to the other Party of its desire to amend this Agreement. Any such notice must be in writing and given in the ninety (90) day period prior to **March 31, 2020**.

ARTICLE 32 – RETROACTIVITY

32.01

Wages are to be retroactive, All other changes are to be effective the date of the award. Wage retroactivity is to be paid on the basis of all paid hours from **April 1, 2016**. **Payment is to be made within sixty (60) days of the date of this award.** Eligible employees who have left the employ of the County are to be so notified in writing at their address on file within thirty (30) days of the date of this award. Payment is to be made within thirty (30) days of acknowledgement of receipt of such notice.

Signed at Siracuse, Ontario, this 28th day of November, 2018.

FOR THE UNION:

Richard
Leo Block
Andrew
Stefan
Wan

FOR THE EMPLOYER:

Ch. Linder
Mayor
J. R.
County Clerk



LETTER OF UNDERSTANDING (#1) – Part-Time Entitlement

Between

**The Corporation of Norfolk County
(hereinafter referred to as the “Employer”)**

-and-

**Ontario Public Service Employees Union, Local 279
(Representing the Full-Time and Part-Time Paramedic Employees)
(hereinafter referred to as the “Union”)**

Re: Part-Time Entitlement

1. The terms and conditions of employment for part-time paramedics of the Ambulance Service, being those paramedics who are not regularly employed for more than twenty-four (24) hours per week, shall be the same as for full-time paramedics, except as follows:
 - 1.1. Upon completion of nine hundred sixty (960) hours of work in a classification, a part-time paramedic shall be considered as having completed his/her probationary period. Part-time paramedics moving to full-time status shall not be required to serve an additional probationary period.
 - 1.2. The Employer will provide initially to part-time paramedics: three (3) shirts, two (2) pair of trousers, one (1) black belt, one (1) winter parka, and one (1) spring jacket. Replacement of these items will be on a justified needs basis as determined by the Employer, rather than annual.
 - 1.3. The Employer will provide one hundred seventy five dollars (\$175) dollars on a pay issued in January of each year to every full and part-time paramedic for the purpose of purchasing appropriate safety footwear.
 - 1.4. Part-time seniority shall be based on all onsite hours worked by the part-time paramedic for the Employer. No paramedic may accumulate more than one (1) year's seniority in any calendar year.
 - 1.5. For the purposes of determining full-time seniority and service credits in the event a part-time paramedic is successful in achieving full-time status, it is agreed that two thousand and eighty (2080) hours worked as a part-time paramedic equals one (1) year of full-time seniority and service credit.
 - 1.6. Wages: See Schedule B of the Collective Agreement.
 - 1.7. Part-time paramedics shall not be entitled to Health and Welfare Benefits.

Letter of Understanding (Part-Time Entitlement) cont'd

- 1.8. Part-time paramedics and part-time paramedics filling temporary full-time vacancies shall receive eight point five percent (8.5%) of gross pay in lieu of sick leave and Health and Welfare Benefits following successful completion of the probationary period.
- 1.9. Part-time availability should be forwarded to management via fax/email/in writing, two (2) consecutive months prior to the posting of each schedule. The assignment of hours for part-time paramedics who fail to provide availability shall be at the discretion of the Employer.

2. In order to maintain part time employment status, each part time paramedic must:

- 2.1. Provide management utilizing current scheduling practice as identified by the Employer, availability and non-availability on a monthly basis, at least sixty (60) days prior to the beginning of each calendar month. Completed schedules of work will be posted sixty (60) days prior to the beginning of said schedule.
- 2.2. Provide and maintain availability for at least fourteen (14) shifts in a period of two (2) consecutive calendar months. Availability of a part time paramedic for 0700-1900 and/or 0800-1600 on the same calendar day shall be counted as one (1) shift availability (Day Shift Available).
- 2.3. Provide and maintain at least three (3) of these submitted shifts of availability in a period of two (2) consecutive calendar months on weekends. A weekend is considered to be any shift between 1900 hours on Friday to 0700 hours on Monday.
- 2.4. Availability is not to be construed as a guaranteed number of shifts per month that will be offered to each paramedic.
- 2.5. Understand and accept that any availability submitted for either day or night shift is for any and all bases across Norfolk County.
- 2.6. Notify Management at least twenty-four (24) hours in advance of any availability changes via current scheduling technology or email. This refers solely to future availability and not for shifts already scheduled.

Signed at Simcoe, Ontario, this 28th day of November, 2018.

FOR THE UNION:

P. Richards
J. Richards
Les Black
John Walsh

FOR THE EMPLOYER:

CA. Rucke
Mayor
G. 2
County Clerk



LETTER OF UNDERSTANDING (#2) – Dry Cleaning

Between

**The Corporation of Norfolk County
(hereinafter referred to as the “Employer”)**

-and-

**Ontario Public Service Employees Union, Local 279
(Representing the Full-Time and Part-Time Paramedic Employees)
(hereinafter referred to as the “Union”)**

RE: Dry Cleaning

The Employer agrees to pay for the dry cleaning of uniforms that are contaminated by patient body fluids or by hazardous waste.

Signed at Simcoe, Ontario, this 28th day of November, 2018.

FOR THE UNION:

[Signature]
[Signature]
[Signature]
[Signature]

FOR THE EMPLOYER:

[Signature]
Mayor

[Signature]
County Clerk



LETTER OF UNDERSTANDING (#3) – Advanced Life Support – Advanced Care Paramedic

**Between
The Corporation of Norfolk County
(hereinafter referred to as the “Employer”)**

-and-

**Ontario Public Service Employees Union, Local 279
(Representing the Full-Time and Part-Time Paramedic Employees)
(hereinafter referred to as the “Union”)**

Re: Advanced Life Support – Advanced Care Paramedic

The Parties agree that should the County propose to introduce Advanced Life Support – Advanced Care Paramedics during the term of this Collective Agreement, the Negotiating Committees shall reconvene to negotiate compensation, and to discuss training and implementation.

Should the Parties fail to reach agreement the matter will be referred to consensual Mediation/Arbitration. The Parties shall mutually agree on the Mediator/Arbitrator and each Party will pay one-half of the fees and expenses.

This Letter of Understanding shall be reviewed during renegotiation of this Collective Agreement.

Signed at Simcoe, Ontario, this 28th day of November, 2018.

FOR THE UNION

[Signature]
J. Richards
Les Block
[Signature]

FOR THE EMPLOYER:

[Signature]
Mayor
[Signature]
County Clerk



LETTER OF UNDERSTANDING (#4) – Banked Overtime

Between

**The Corporation of Norfolk County
(hereinafter referred to as the “Employer”)**

-and-

**Ontario Public Service Employees Union, Local 279
(Representing the Full-Time and Part-Time Paramedic Employees)
(hereinafter referred to as the “Union”)**

Re: Banked Overtime

A full-time paramedic shall be compensated for overtime and statutory holidays at the premium rate, either by being paid for it or by taking leave in lieu of payment. Such lieu may be accumulated by a full-time paramedic to a maximum of forty-eight (48) hour balance in each overtime and statutory holiday bank in the calendar year. It shall be the duty of the full-time paramedic to notify the Employer if they wish to exercise this option.

Compensating leave using the accumulated overtime may be taken by the full-time paramedic at their request, subject to the staffing requirements of the services.

Any overtime that has been accumulated for the purpose of taking compensating leave that has not been used at the end of the calendar year will be paid out by the Employer at the full-time paramedic's basic hourly rate of pay.

The Employer shall keep a running total of a full-time paramedic's "banked" overtime hours, and such total shall be noted on a full-time paramedic's pay stub.

A full-time paramedic may request to be paid for all or a portion of their "banked time" at any time and such requests will be paid to the full-time paramedic on the next practical pay day.

Letter of Understanding (Banked Overtime) cont'd

Signed at Simcoe, Ontario, this 28th day of November, 2018.

FOR THE UNION:






FOR THE EMPLOYER:


Mayor

County Clerk



LETTER OF UNDERSTANDING (#5) – Dedicated Ambulance – Scheduled Transfers

Between
The Corporation of Norfolk County
(hereinafter referred to as the "Employer")

-and-

Ontario Public Service Employees Union, Local 279
(Representing the Full-Time and Part-Time Paramedic Employees)
(hereinafter referred to as the "Union")

Re: Dedicated Ambulance – Scheduled Transfers

In the event the County determines to initiate a dedicated ambulance to handle transfer calls from Monday to Friday the Parties agree as follows:

1. The County will meet with the Union to negotiate issues related to the transfer vehicle.
2. Should an impasse be reached on the transfer vehicle issues, the matters remaining in dispute will be referred to a mutually agreeable single consensual interest arbitrator.
3. The negotiated or arbitrated issues will be attached to and form part of the Collective Agreement.
4. No member of the bargaining unit will be laid off as a result of the implementation of the transfer vehicle.
5. Should there be no internal applications for the transfer vehicle; a current paramedic may be assigned based on seniority with no loss of pay.

Signed at Simcoe, Ontario, this 28th day of November, 2018.

FOR THE UNION:

P. [Signature]
J. Richards
Leo Block
[Signature]

FOR THE EMPLOYER:

[Signature]
Mayor
[Signature]
County Clerk



LETTER OF UNDERSTANDING (#6) – Consensual Arbitration

**Between
The Corporation of Norfolk County
(hereinafter referred to as the "Employer")**

-and-

**Ontario Public Service Employees Union, Local 279
(Representing the Full-Time and Part-Time Paramedic Employees)
(hereinafter referred to as the "Union")**

Re: Consensual Arbitration

The Parties agree that should this round of negotiations result in an impasse, all matters in dispute will be referred to consensual arbitration.

The Parties will each appoint a nominee to the Arbitration Board within fifteen days.

The nominees will agree to a chairperson within twenty days of appointment or such other timeframe as mutually agreed.

Each Party is responsible for the expenses of their nominee and one-half of the expenses of the Arbitrator.

Signed at Sirrox, Ontario, this 20th day of November, 2018.

FOR THE UNION:

[Signature]
[Signature]
[Signature]
[Signature]

FOR THE EMPLOYER:

[Signature]
Mayor
[Signature]
County Clerk



LETTER OF UNDERSTANDING (#7) – Pay Equity

**Between
The Corporation of Norfolk County
(hereinafter referred to as the “Employer”)**

-and-

**Ontario Public Service Employees Union, Local 279
(Representing the Full-Time and Part-Time Paramedic Employees)
(hereinafter referred to as the “Union”)**

Re: Pay Equity

OPSEU Local 279 represents 82 full-time and part-time paramedics. .

The Job Class definition in the *Pay Equity Act* is for those positions in an establishment that have:

- Similar duties and responsibilities
- Require similar qualifications
- Are filled by similar recruiting procedures
- Have the same compensation schedule, salary grade or range of salary rates.

The parties hereby agree that full time and part time paramedics compose a single paramedic job class for the purposes of the *Pay Equity Act*.

Based on the fact that all the paramedics are in the same job class, they also have the same job rate. Further, the parties agree that the paramedic job class is gender neutral. There are no other job classes in the bargaining unit,

Based on the foregoing, the parties agree that there no further pay equity analysis or pay equity plan is required by the *Pay Equity Act*.

The Parties agree the requirements of the Pay Equity Act have been satisfied.

Letter of Understanding (Pay Equity) cont'd

Signed at Sirco, Ontario, this 28th day of November, 2018.

FOR THE UNION:

P. P. P.
Richards
Les Block
John Wilson

FOR THE EMPLOYER:

Mayor
County Clerk



LETTER OF UNDERSTANDING (#8) – Short Term Disability Plan

**Between
The Corporation of Norfolk County
(hereinafter referred to as the “Employer”)**

-and-

**Ontario Public Service Employees Union, Local 279
(Representing the Full-Time and Part-Time Paramedic Employees)
(hereinafter referred to as the “Union”)**

Re: Short Term Disability Plan

The Parties agree to implement the following Short Term Disability Plan for the duration of this Collective Agreement and it shall remain in effect until ratification by both parties of a new Collective Agreement.

1. Full-time paramedics shall receive a benefit equivalent to the difference between seventy-five percent (75%) of their regular weekly wages and the sum of their weekly Employment Insurance benefit for a maximum of sixteen (16) weeks if:
 - (i) The paramedic is unable to perform their duties due to disability or injury not covered by WSIB for a period of absence exceeding seven (7) scheduled shifts, or
 - (ii) on the first day of absence from a scheduled shift if the sick leave absence results in admission to a hospital for a minimum of one (1) night.
2. Norfolk County will advance the Employment Insurance portion of the benefit for a period of up to one (1) month (two pay periods) upon receipt of official written proof that the paramedic has filed for Employment Insurance sick benefits. The provision of further short term disability benefits will be subject to official written proof as to the status of the claim.

Upon receipt by the Employer of official written proof as to the Employment Insurance sick benefit eligibility and entitlement amount, if applicable, the paramedic shall be issued short term disability benefits in the amount equivalent to the difference between seventy-five percent (75%) of their regular weekly wages and the sum of their weekly Employment Insurance benefits, for a maximum of sixteen (16) weeks.

3. The paramedic shall repay any monies received from the Employer which exceed the difference between seventy-five percent (75%) of their regular weekly wages and the sum of their weekly Employment Insurance benefit during the sixteen (16) week entitlement.
4. Deliberate misrepresentation by the paramedic of the status or entitlement of their Employment Insurance claim shall constitute fraud and such paramedic shall be subject to termination.
5. If during the short term disability leave a paramedic is laid off or terminated other than for retirement, the paramedic will continue on short-term disability leave until the earliest of:
 - (i) The expiry of his / her short term disability coverage; or
 - (ii) The end of the illness

If notice of layoff or termination is given prior to the commencement of the short-term disability leave and the short-term disability leave starts within two calendar months of the layoff/ termination date, the leave stops on the layoff/termination date.

6. The Parties agree to work co-operatively in the implementation of this Memorandum.

Signed at Simcoe, Ontario, this 28th day of November, 2018.

FOR THE UNION:

[Signature]
Richards
Leo Boback
[Signature]

FOR THE EMPLOYER:

[Signature]
Mayor
[Signature]
County Clerk



LETTER OF UNDERSTANDING (#9) – Short Term Sick Leave

**Between
The Corporation of Norfolk County
(hereinafter referred to as the "Employer")**

-and-

**Ontario Public Service Employees Union, Local 279
(Representing the Full-Time and Part-Time Paramedic Employees)
(hereinafter referred to as the "Union")**

Re: Short Term Sick Leave

Norfolk County will advance the Employment Insurance portion of the benefit for a period of up to one (1) month (two (2) pay periods) upon receipt by the Payroll Coordinator, Human Resources & Staff Development Department, of official written proof that the paramedic has filed for Employment Insurance sick benefits. The provision of further short-term disability benefits will be subject to official written proof as to the status of the claim.

Signed at Simcoe, Ontario, this 28th day of November, 2018.

FOR THE UNION:

[Signature]

Richards

Leo Block

Arthur White

FOR THE EMPLOYER:

[Signature]

Mayor

[Signature]

County Clerk



LETTER OF UNDERSTANDING (#10) – Job Share

**Between
The Corporation of Norfolk County
(hereinafter referred to as the “Employer”)**

-and-

**Ontario Public Service Employees Union, Local 279
(Representing the Full-Time and Part-Time Paramedic Employees)
(hereinafter referred to as the “Union”)**

Re: Job Share

The parties agree to implement the following Job Share language for the duration of the Collective Agreement and it shall remain in effect until ratification of a new Collective Agreement.

The Parties shall meet six (6) month following the start date of the first job share initiates to review the terms and negotiate any necessary changes, where mutually agreeable.

Preamble:

Job Sharing refers to the concept of a written agreement where two equally qualified Paramedics divide the hours and responsibilities of one Full Time Paramedic position (FTE). All Job Sharing Agreements must be fair and equitable, not cost in excess of 1 full-time position and be in accordance with Norfolk County Policies and Procedures, Norfolk County EMS Policies and Procedures and any applicable legislation. Both Paramedics must have the ability, experience and qualifications to perform the duties and responsibilities of the position which is to be shared. Each Job Sharing Agreement will adhere to the following Letter of Understanding in the Collective Agreement and will be further defined by a written agreement signed by both parties entering into the job sharing arrangement. All Job Sharing Agreements must be approved by the **Chief, Paramedic Services**.

Definitions and Specifications:

1. Job Sharing, for the purpose of this agreement, shall be defined as the sharing of the hours and responsibilities of a normally scheduled Full Time Paramedic (one FTE) by two (2) existing Paramedics of the same classification. Job sharing is splitting of one (1)

full-time paramedic into two (2) parts totaling 80-84 hours per pay period, dependent on the position being shared. Any Paramedic being considered for a Job Sharing Agreement shall have satisfactorily completed their probationary period in accordance with the Collective Agreement.

2. Once a Full Time Paramedic has indicated their desire to job share in writing to the Deputy Chief of Norfolk County EMS or designate, at least sixty (60) days prior to the requested start date, the secondary Paramedic component of the Job Sharing Agreement shall be determined, subsequent to a posting, as per the Collective Agreement, by seniority.
3. It is understood and agreed that should a Full Time Paramedic apply for the secondary portion of the Job Sharing Agreement, their current Full Time position shall be posted as a temporary full time job. Should the Job Sharing Agreement be terminated for any reason, this Paramedic shall assume their previous role.
4. Any Part Time Paramedic that applies for the secondary part of a Job Sharing Agreement must provide to management a six month schedule of availability that demonstrates a minimum of fifty percent (50%) of a Full Time Position (FTE), which equals a minimum of 80-84 hours in two pay periods, dependent on the position being shared, to be considered available for job sharing responsibilities. If such position is posted and there are no qualified or interested applicants, the requesting Full Time Paramedic shall retain their current Full Time position in its entirety.
5. It is understood and agreed that no more than two (2) Job Sharing Agreements (FTE positions) will exist at any given time within the current complement of Full Time positions at Norfolk County EMS. Job Sharing Agreements will therefore be granted to the requesting Paramedic with the highest seniority at the time of request. Once an agreement is approved and/or in place, there will be no termination of the agreement based on the later request of a more senior Full Time Paramedic wishing to enter a job sharing position.
6. The Job Sharing Agreement shall be for a minimum of one (1) year and shall not exceed a maximum of three (3) years. If the Paramedic would like to Job Share for longer than three (3) years, the Paramedic will be required to re-submit a Job Share request. Such request will be considered by seniority.
7. A review of the Job Sharing Agreement shall be conducted yearly between each Paramedic involved, the Union, a member of the Leadership Team and the Manager of the Human Resources and Staff Development Division.

Terms and Conditions:

1. Both Paramedics involved in the Job Sharing Agreement will prepare an agreed upon schedule of hours within that Full Time position in accordance with the current platoon/base schedule for Norfolk County EMS. Each participant will maintain fifty percent (50%) of an FTE, to be assessed as 80-84 hours in two consecutive pay periods. The chosen schedule of hours within the Job Sharing Agreement is to be signed by both participating Paramedics and submitted to the Deputy Chief of Norfolk County EMS a minimum of two (2) calendar months (4 pay periods) prior to the commencement of that schedule for approval.
2. Each Job Sharing participant will make every reasonable effort to provide coverage for the approved vacation time and, when possible, the sick time or personal leave, for their partner in the job sharing agreement, to a maximum of hours in the pay period.
3. The Paramedics in the job sharing agreement shall not accrue overtime hours for any shift accepted unless they exceed 84 hours in a pay period.
4. Each Job Sharing Paramedic shall agree to pay fifty percent (50%) of premiums for fixed cost for dental, life and long term disability and Extended Health Care Benefits provided under the Collective Agreement. Premium payments required of Paramedics because of Job Sharing Agreements will be made by payroll deduction, and as such, written authorization from such Paramedics for the payroll deduction must be provided to Norfolk County Employee and Business Services as a condition precedent to their participation in the benefit program.
5. Each Job Sharing participant shall also accrue paid Vacation and Sick Leave as per the Collective Agreement on a pro-rated basis of fifty percent (50%) of a Full Time Paramedic.
6. Statutory Holidays that are not worked, each paramedic in the job share will receive a prorated portion of the stat holiday pay based on hours of work in the previous six weeks.
7. Paramedics participating in a Job Sharing Agreement shall receive pro-rated uniform allotments on an annual basis of fifty percent (50%) of a Full Time Paramedic. They shall receive Safety Footwear allotments as detailed in the Collective Agreement.
8. Any Paramedic in a Job Sharing Agreement that was previously a Part Time Paramedic remains eligible to apply for any temporary or permanent Full Time position vacancies should they arise within Norfolk County EMS.
9. Both Paramedics in the Job Sharing Agreement shall retain their current seniority date throughout the job sharing agreement as per the collective agreement.

10. Job sharing participants shall be eligible to be assigned ad hoc shifts that come available outside of their job sharing arrangement based on schedule C of the collective agreement, with respect being given to points 3 and 8 above.
11. Job sharing participants are eligible to initiate fifty percent (50%) of the shift exchanges allotted to a Full Time paramedic under the current CBA.

Discontinuation of the Job Sharing Agreement:

1. If one job sharing participant wishes to leave the arrangement, after the minimum one (1) year period, written notification of this shall be submitted to the Deputy Chief of Norfolk County EMS or designate a minimum of sixty (60) days prior to the requested termination date.
2. Either party may, providing extenuating circumstances, terminate any/all job sharing agreements with sixty (60) days written notice for operational reasons, as defined in a satisfactory way, to the Union or Employer, on a case by case basis.
3. If the Paramedic requesting termination of the arrangement is the Secondary Paramedic, the Primary Paramedic has the option of returning to their former position in its entirety. The primary Paramedic in said agreement may:
 - a. Return to his/her former position in its entirety.
 - b. If the offer of return to their Full Time position is declined and the continuance of a job sharing agreement is requested for their FTE, the vacant secondary portion of the job sharing position shall be posted and filled as per this LOU and the Collective Agreement.
 - c. If the posting is not filled by a qualified or interested Paramedic, the current job share participant shall be returned to their Full Time position in its entirety.
4. If the Paramedic requesting termination of the arrangement is Primary Paramedic, both Job Sharers shall return to their original positions in their entirety.
5. A Paramedic who initiates the termination of a job share agreement will not be permitted to apply for a new job share agreement for the period of one year.
6. In the event of a platoon/base spot rotation selection process within Norfolk County EMS, both Job Sharers will participate (if required/requested).
7. It is understood and agreed that the Employer may terminate the Job Sharing Agreement without notice or payment in lieu of notice for just cause which, for the purpose of this Letter of Understanding, shall be defined as any act which, by law, justifies the dismissal of the Paramedic/Employee.

Signed at Simcoe, Ontario, this 28th day of November, 2018.

FOR THE UNION:

P. Hurd

J. Richards

Leo Pollock

John Wilson

FOR THE EMPLOYER:

Ch. Crisler

Mayor

G. 2

County Clerk



LETTER OF UNDERSTANDING (#11) – Platoon Leaders

**Between
The Corporation of Norfolk County
(hereinafter referred to as the “Employer”)**

-and-

**Ontario Public Service Employees Union, Local 279
(Representing the Full-Time and Part-Time Paramedic Employees)
(hereinafter referred to as the “Union”)**

Re: Platoon Leaders

Norfolk County Emergency Medical Services will train and mentor a maximum of eight (8) current Full Time Paramedics to perform the role of Platoon Leader. To be eligible for this opportunity, paramedics must be currently employed as a Full Time paramedic with Norfolk County and have a minimum of five (5) years work experience as a Paramedic.

Platoon Leaders will be placed on PL shifts according to their regularly scheduled rotation at the discretion of the Employer. Platoon Leaders will be removed from their regularly scheduled shifts to be placed on a first response unit for a full twelve (12) hour shift, with a cumulative total of shifts not to exceed fourteen (14) shifts per month. Platoon Leaders will be required to work variable shifts including shift call up for backfill coverage or blocks of shifts, not to exceed five (5) consecutive shifts at any time. All PL shifts will be given out to the selected and trained paramedics in a fair and equitable manner, with a minimum of twenty-four (24) hour notice to the paramedic.

Platoon Leader positions will be **paid a four percent (4%) premium on their base rate.**

Platoon Leader positions within Norfolk County EMS will provide duties as listed below, with limited responsibility outside of the bargaining unit.

Duties:

- Reports directly to EMS Commander(s)
- Completes Daily Vehicle Check, Shift Log and PL Tour Report each shift
- Provide first response, direct patient care and on-site coordination for major incidents as per BLS/ALS Standards, Medical Directives, Policy and Legislated requirements
- Ensure operational readiness of fleet, stations and personnel
- Promotes a safe and healthy work environment

- Ensure contact with Central Ambulance Communications Centre is maintained at all times regarding the status and the movement of ambulances by staff
- Coordinate replacement staffing when required
- Coordinate the replacement of any non-operative vehicles during assigned shift as required
- Ensures all station supplies, medical supplies, medications and patient care equipment is maintained at an acceptable level in each station, ambulance, FRU and/or ESU
- Establishes and maintains good relationships with allied agencies and the public
- Maintains contact with the assigned Duty Officer to report any major incidents, staffing replacements, vehicle/equipment issues and any other concerns
- Performs other duties as assigned

NOTE: This position will issue no discipline; it has no authority to discipline, terminate or hire personnel at any time. Any and all internal or external controversial issues or labour relations concerns will be referred to EMS Commander(s) and/or Duty Officer for Norfolk County EMS.

Signed at Simcoe, Ontario, this 28th day of November, 2018.

FOR THE UNION:

[Signature]
[Signature]
Les Bick
[Signature]

FOR THE EMPLOYER:

[Signature]
 Mayor
[Signature]
 County Clerk

SCHEDULE A

Extended Health and Welfare Benefits

Basic Life Insurance

- principle amount
- optional life insurance to be paid by paramedic is available in units of \$25,000, up to \$125,000 maximum optional coverage

Long Term Disability

- coverage to be 70% of earnings to a maximum of \$4,500 / month
- 17 week waiting period
- introduce direct offsets for long term disability

Dental

- 100% coverage of basic services
- 50% coverage on dentures
- maximums: basic services unlimited, dentures unlimited
- one year behind current ODA rates
- recall period: 9 months for adults 18 years of age and over, 6 months for children

Extended Health

- annual deductible: \$10 single / \$20 family
- premiums: 100% Employer paid
- physiotherapy care coverage: (\$500) dollars per family member per calendar year
- vision care coverage:
 - **(\$375)** dollars coverage every twenty-four (24) months effective **January 1, 2018**
- generic drugs only: unless prescription specifies "no substitutions"
- dispensing fee cap: \$9.00
- drugs covered in addition: anti-obesity drugs
- private duty nursing: \$10,000 annual maximum
- services of a chiropractor, osteopath, podiatrist, chiropodist, massage therapist: covered to a maximum of \$500 (each service) per year
- speech therapist and clinical psychologist services: covered to a maximum of **\$500** (each service) per year
- hearing aids: **\$500** in every five years
- prosthetics and medical equipment: covered as required
- out of province medical coverage: \$1 million maximum lifetime
- ambulance transportation fees: covered

SCHEDULE B – WAGES

Full-time and Part-time Paramedic

(Salary Schedule 2016/2017/2018/2019)

Effective April 1, 2016

Number of Hours Worked	Hourly
Start Rate	\$35.003
Level 1/After 1 year/2080 hours	\$36.099
Level 2/After 2 years/4160 hours	\$37.158

Effective April 1, 2017

Number of Hours Worked	Hourly
Start Rate	\$35.546
Level 1/After 1 year/2080 hours	\$36.658
Level 2/After 2 years/4160 hours	\$37.734

Effective April 1, 2018

Number of Hours Worked	Hourly
Start Rate	\$36.079
Level 1/After 1 year/2080 hours	\$37.208
Level 2/After 2 years/4160 hours	\$38.300

Effective April 1, 2019

Number of Hours Worked	Hourly
Start Rate	\$36.620
Level 1/After 1 year/2080 hours	\$37.766
Level 2/After 2 years/4160 hours	\$38.875

NOTE: Paramedics which are Hamilton Base Hospital certified for IV Starts shall receive an additional \$0.25 per hour for all hours paid.

SCHEDULE C – OPEN SHIFTS

1. The hours will first be offered to part-time paramedics, by seniority, until either the opening has been filled, no part-time paramedic is available or all part-time have been scheduled for twenty-four (24) hours in a two (2) week pay period.
2. If after Step 1 there are hours to be filled, shifts will be offered to part time by seniority on a shift by shift basis until all openings have been filled or no part time paramedic is available or until all part time have eighty four (84) hours in a two (2) week pay period.
3. If after Step 2 there are hours to be filled, they shall be offered to available full-time paramedics by seniority.
4. Scheduling shall be at the discretion of the Corporation outlining a fair and equitable shift distribution.
5. If a paramedic has not had a minimum of eight (8) hours off between shifts, no offer will be made.
6. It is the responsibility of each paramedic to refuse a shift violating Step 5.
7. Part-time paramedics will provide their availability to the **Chief, Paramedic Services** or designate two (2) months in advance of the completed posted schedule.
8. The County reserves the right in an emergency call-in to offer the shift to the closest/fastest responding paramedic.
9. Shift refusals (turning shifts back in) must be submitted, in writing, to the **Commander** no later than fifteen (15) days in advance of the scheduled shift.